



Notification Waiver Determination

KKR and ECP – DCC Energy

Acquisition	Dragon Bidco Limited (Dragon) applied for a notification waiver in respect of its proposed acquisition of the entire share capital and voting rights in DCC Energy Pty Ltd (DCC), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	7 October 2026

Parties to the Acquisition	The acquirer, Dragon, is a special purpose vehicle that is jointly owned by Krypton Holdco Pty Ltd (Krypton Holdco) and ECP Dragon Holdco Ltd (ECP Dragon). Krypton Holdco is a special purpose vehicle indirectly wholly owned by investment funds, vehicles and/or accounts advised and managed by various subsidiaries of KKR & Co. Inc. (together with its subsidiaries, KKR). KKR is a global investment firm that offers alternative asset management as well as capital markets and insurance solutions. ECP Dragon is a special purpose vehicle indirectly wholly owned by investment funds, vehicles, and/or accounts respectively advised and/or managed by affiliates of Energy Capital Partners, a private equity firm founded in 2005 which acquires and invests in a range of energy infrastructure-related assets, which was acquired by Bridgepoint Group plc (Bridgepoint) in 2024. Bridgepoint is active in private asset growth investing across private equity, infrastructure, private credit, and secondaries. The target, DCC is a multi-energy sales and distribution group headquartered in Dublin and listed on the London Stock Exchange. DCC operates worldwide through two divisions: DCC Energy, its principal division, a downstream marketer and distributor of energy products and services in North America and Europe, and DCC Technology (trading as Nexora), a value-added distributor of professional technology solutions throughout North America and Europe. In Australia, DCC Energy's operations are limited to the supply of lubricants to Australian customers.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given there is no horizontal overlap or vertical relationship between DCC and KKR or Bridgepoint (or their connected entities) in the supply of lubricants or professional technology solutions in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act